

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

OLENA KATS,

Petitioner

VS.

ARTSIOM KHATKEVICH,

Respondent

) Case Number: FDV-25-818347

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Olena Kats and Respondent Artsiom Khatkevich previously had a dating relationship. They are not married and do not have any minor children in common.
- 2) Following a long-cause hearing on 9/30/2025 and 12/2/2025, Judge Gold adjudicated the parties' mutual requests for Domestic Violence Restraining Order (Petitioner filed her request for a DVRO on 4/21/2025 and Respondent filed his request for a DVRO on 7/8/2025). Judge Gold denied Respondent's request for a DVRO and granted Petitioner a one-year Restraining Order After Hearing (filed 1/6/2026).
- 3) Now on for hearing is Petitioner's Request for Order filed 3/3/2026 asking the Court to award her \$12,014.42 in attorney's fees and costs under Family Code section 6344. Petitioner attached to her Request for Order a declaration by attorney Ana Voloshko (who Petitioner retained after she had filed her Request for DVRO and who represented Petitioner at the long-cause hearing). Petitioner also attached invoices from her attorney Ana Voloshko for tasks performed between 5/16/2025 and 12/2/2025.

- 1 4) On 3/3/2026, Petitioner filed an Income and Expense Declaration.
- 2 5) On 4/7/2025, Respondent filed a Responsive Declaration asking the Court to deny Petitioner's
- 3 requested orders. Respondent claims that Petitioner's Income and Expense Declaration conceals
- 4 her true income, expenses, and assets. Respondent also argues that Petitioner is not a true
- 5 prevailing party because the Court denied her request to include additional third parties as
- 6 protected parties, to order Respondent to attend a 52-week batterer intervention program, and her
- 7 request for a 5-year restraining order (limiting the restraining order to 12 months). Moreover,
- 8 Respondent states that he prevailed regarding his request that Petitioner be ordered to return a
- 9 mobile phone number to Respondent. Respondent also argues that attorney Ana Voloshko is
- 10 unprofessional, caused delays in the case, and her invoices contain misrepresentations (for
- 11 instance, there are line items for discussions with opposing counsel, when Respondent has not
- 12 been represented by an attorney in this matter) as well as work performed by "KK" "OP" and
- 13 "KS" without explanation regarding who these individuals are. Finally, Respondent argues he has
- 14 no ability to pay attorney's fees and costs and that his business revenue has taken a hit due to
- 15 Petitioner's "defamation." Respondent attached as pg. 233 of his Responsive Declaration an
- 16 Income and Expense Declaration stating that he earns on average \$3,800 per month in net self-
- 17 employment income, pays \$3,697 per month in expenses, and has \$0 in assets and debts.
- 18 Respondent attached a 2025 Schedule C to his Responsive Declaration which shows gross
- 19 income of \$49,135 and expenses of \$15,237.
- 20 6) On 4/14/2026, Petitioner filed a Reply Declaration. Petitioner contends that Respondent is
- 21 misrepresenting is current earnings but provides no evidence to contradict Respondent's
- 22 statements. Petitioner states that the attorney's fees incurred are reasonable in light of multiple
- 23 hearings and trial preparation and that fact that her attorney billed her at a below-market rate.

24 **B. Findings and Order**

- 25 1) Family Code section 6344 states: "(a) After notice and a hearing, a court, upon request, shall
- 26 issue an order for the payment of attorney's fees and costs for a prevailing petitioner... (c) Before
- 27 a court awards attorney's fees and costs pursuant to this section, the court shall first determine
- 28 pursuant to Section 270 that the party ordered to pay has, or is reasonably likely to have, the
- 29 ability to pay."

1 2) The Court finds that Petitioner is the prevailing party with respect to her Request for DVRO. The
2 Court finds that whether Petitioner has the ability to pay her own attorney's fees and costs is
3 irrelevant. The Court is unable to find, based on the evidence presented by Petitioner and
4 Respondent to date, that Respondent has or is reasonably likely to have the ability to make any
5 contribution towards Petitioner's attorney's fees and costs. Petitioner's request is denied without
6 prejudice to a new Request for Order that is supported by evidence that Respondent has the
7 ability to pay the fees requested.

8 3) The Court will prepare the Findings and Order After Hearing.
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